

We Share by OrenGen

WeShare Program — Independent Contractor Classification Agreement

OrenGen Worldwide LLC · Effective June 2026 · v1.1

Independent Contractor Agreement

This Independent Contractor Agreement ("ICA") supplements and is incorporated into the Affiliate Agreement or Sales Partner Agreement (as applicable) between **OrenGen Worldwide LLC** ("Company") and the registering individual or entity ("Contractor"). In the event of conflict, the applicable program agreement prevails.

1. Independent Contractor Status

Contractor is an **independent contractor**, not an employee, agent, partner, or joint venturer of Company. This Agreement does not create any employment relationship. Contractor retains the right to perform services for other clients, provided such services do not violate §5 below.

2. Services

Contractor agrees to provide marketing referral services (Affiliates) or direct sales services (Sales Partners) as described in the applicable program agreement. Contractor controls the manner, means, timing, and location of performing these services, subject to Company's program guidelines, conduct rules, and compliance obligations.

3. Compensation

Contractor is compensated exclusively on a commission basis as specified in the applicable program agreement. No wages, salary, hourly pay, or guaranteed compensation of any kind is owed. Company will not withhold any taxes from commission payments.

4. Taxes & Benefits

- Contractor is solely responsible for payment of all federal, state, and local taxes on amounts received, including self-employment taxes.
- Company will issue IRS Form 1099-NEC for each calendar year in which Contractor earns \$600 or more, as required by law (issued through Stripe Connect).
- Contractor is not entitled to and will not receive any employee benefits, including health insurance, retirement plans, vacation pay, or workers' compensation coverage from Company.

- Contractor is encouraged to maintain appropriate business insurance.

5. Non-Competition & Non-Solicitation

- **During program participation:** Contractor may not sell, market, or refer business for any directly competing website-build-and-maintenance service targeting the same customer pool as OrenGen.
- **Non-Solicitation:** During participation and for 12 months after separation (for any reason), Contractor may not solicit, recruit, or induce any OrenGen customer or lead to purchase competing services from Contractor or any third party.
- These restrictions apply only to customers and leads that Contractor accessed through Company systems. Contractor's pre-existing business relationships are not restricted.

6. Confidentiality

Contractor will protect Company's confidential information with the same degree of care used to protect Contractor's own confidential information (minimum: reasonable care). Confidential information includes: lead databases, scripts, commission rates (beyond approved public disclosures), customer data, business strategy, and program internals. This obligation survives termination indefinitely for trade secrets and for 3 years for other confidential information.

7. Intellectual Property

Any marketing materials, tools, or content created by Contractor specifically for Company as part of the program services ("Work Product") are assigned to Company upon creation. Contractor retains ownership of all pre-existing materials and general marketing skills developed independently.

8. Indemnification

Contractor will indemnify, defend, and hold harmless Company and its officers, members, employees, and agents from any claims, damages, or costs (including reasonable attorneys' fees) arising from: (a) Contractor's breach of this Agreement or any program agreement; (b) Contractor's negligence or willful misconduct; (c) Contractor's failure to comply with applicable laws (including CAN-SPAM, TCPA, FTC disclosure rules, and tax obligations); or (d) Contractor's marketing activities.

9. Warranty

Contractor represents and warrants that: (a) Contractor has the legal right to enter into this Agreement; (b) performance of services will not violate any other agreement or legal obligation of Contractor; (c) all information provided to Company is accurate and complete.

10. Term & Termination

This Agreement is effective upon registration and continues until terminated by either party with or without cause and with or without notice, subject to the commission payment terms in the applicable program agreement. Sections 5, 6, 7, and 8 survive termination.

11. Governing Law

Governed by the laws of the State of Texas. Disputes are subject to the arbitration provision in the applicable program agreement.

12. Entire Agreement

This ICA, together with the applicable program agreement, constitutes the entire understanding of the parties regarding Contractor's independent contractor status and incorporates all related program documents by reference.

Contractor Signature	OrenGen Worldwide LLC — Authorized Representative
Printed Name	Title
Date	Date